

ADU PULSE

Bylaw Consistency Analysis

Newburyport, Massachusetts

Chapter 150 / MGL c.40A §3 / 760 CMR 71.00

Summary

Overall Assessment	Largely Consistent
Municipality Type	City (ordinance — not subject to AG review)
Provisions Analyzed	7
AG Action	None
Bylaw Source	Newburyport Zoning Ordinance, Section XXII
Bylaw Retrieved	February 23, 2026
Last Reviewed	February 23, 2026

Bottom Line

Newburyport adopted a new ADU ordinance in January 2025 that is among the most consistent with state law in Massachusetts. By-right approval, no owner-occupancy requirement, and correct size caps. Two areas merit review: the short-term rental prohibition extends to the principal dwelling (not just the ADU), and the Zoning Determination process adds a procedural step beyond a standard building permit. Neither issue has been tested by the Attorney General.

Permit Activity

According to EOHLC survey data, Newburyport has received 8 ADU permit applications and approved all 8 — a 100% approval rate. No applications have been denied or are pending.

Provision-Level Analysis

NBP-01: No Owner-Occupancy Requirement **[Consistent]**

Newburyport's ordinance deliberately omits any owner-occupancy requirement. The old in-law provisions included one; the city correctly removed it when adopting the new ADU ordinance. Occupancy requirements are a Prohibited Regulation under 760 CMR 71.03(3)(a).

760 CMR 71.03(3)(a)

NBP-02: By-Right Approval for Protected Use ADUs **[Consistent]**

Section XXII-B(2)(b) states that a conforming ADU "shall be allowed as-of-right." Applications are processed through a building permit without discretionary review, consistent with MGL c.40A §3.

MGL c.40A §3

NBP-03: Size Limitations (900 sq ft / 50%) [Consistent]

Mirrors the state cap exactly: ADU shall not exceed the lesser of half the principal dwelling's gross floor area or 900 square feet.

MGL c.40A §7; 760 CMR 71.02

NBP-04: Detached ADU Height and Design Standards [Consistent]

Height limited to the lesser of the principal dwelling or 20 feet. Uses measurable, objective design standards for screening and privacy — permitted under 760 CMR 71.03(3)(b).

760 CMR 71.03(3)(b)

NBP-05: Plum Island Overlay District Restrictions [Consistent]

PIOD restrictions on bedroom additions are tied to a DEP Consent Order regarding water and sewer capacity for the Plum Island barrier beach island. The environmental and infrastructure basis distinguishes this from prohibited zoning use restrictions.

760 CMR 71.03(3)(b); 310 CMR 15.000 (Title 5)

NBP-06: STR Restriction on Principal Dwelling [Needs Review]

Prohibits both the ADU and the principal dwelling from short-term rental use. STR restrictions on ADUs are explicitly authorized by MGL c.40A §3, but extending the prohibition to the principal dwelling goes beyond what Chapter 150 authorizes. Could deter ADU creation by restricting use of the principal dwelling. Not yet subject to AG review.

MGL c.40A §3

NBP-07: Zoning Determination Process [Needs Review]

Requires a written Zoning Determination from the Zoning Administrator before building permit issuance. If ministerial, likely consistent. If it introduces delays or subjective judgment, it could function as de facto discretionary approval — which would be inconsistent with the by-right mandate.

MGL c.40A §3; 760 CMR 71.03

Confidence Tiers

- **Consistent** — Local provision matches or does not conflict with state law.
- **Needs Review** — Provision is ambiguous or has not been tested; may or may not conflict.
- **Appears Inconsistent** — ADU Pulse analysis indicates likely conflict with state law; no AG decision yet.
- **AG Disapproved** — Attorney General has formally disapproved this provision as inconsistent with state law.

Sources

- Newburyport Zoning Ordinance, Section XXII — Accessory Dwelling Units (adopted January 27, 2025)
- Chapter 150 of the Acts of 2024 (Affordable Homes Act)
- MGL c.40A §3 — Zoning enabling act
- 760 CMR 71.00 — ADU implementing regulations
- EOHLC ADU Survey Data (2025–2026)